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May 10, 1998

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Mr. Clarence Comer, President
 Southdown, Inc.
 Corporate Office
 1200 Smith Street, Suite 2400
 Houston, Texas 77002

Divs. - and Geology

Dear Mr. Comer,

*Carl - are they
 in compliance with
 their responsibilities?
 WBT*

I am writing to inform you of a serious situation involving air pollution at your Lyons' plant that is causing grave concerns among many residents of this community. Until this situation is corrected, the animosity felt toward Southdown's inability to control its air pollution will grow greater each day. Our homes are full of white baghouse dust. It erodes the windshields on our automobiles. What do you suppose it does to our lungs?

The Colorado Department of Health and the Environment has responded to our complaints, and a copy of the department's letter to Southdown is enclosed.

The enclosed photograph of plumes of baghouse dust blowing off your property was taken early in April of this year. On that particular day, the plumes were blowing to the east through the St. Vrain Valley and then into the community of Hygiene and on into Longmont. The Colorado Department of Health specifically directed Southdown on February 23, 1998 that "baghouse dust should not remain exposed to the wind." (See enclosed document) Yet, weeks later plumes of Southdown's dust continue to contaminate our area--blown by the wind into our homes, schools, surrounding communities, and into our **lungs**. I have personally discussed this situation with officials at Southdown on three occasions. These gentlemen are cordial, but they seem unable to initiate actions that will eliminate the dust from blowing off the company's property.

The demographics of this area have changed greatly since your plant was built. Many new families have settled in this beautiful region and many new developments are on the horizon. Also hundreds of cyclists and joggers use our roadways for recreation each year. The air pollution from Southdown Lyons' facility is exposing hundreds of people to a greater risk of contracting pulmonary problems and related health perils, and we aren't going to put up with it.

Our organization is called The St. Vrain Valley Community Watchdogs, and we are dedicated to protecting and improving the health and environment of the people of this region. Mr. Comer, we anticipate that our letter to you will result in eliminating air pollution at the Lyons' facility **forever**. We hope you will agree that it is easier to correct this problem **now** than face a more aggressive approach by the citizens of St. Vrain Valley.

Thank you.

Sincerely,

2 enclosures

Letter from Colorado
Department of Public Health
and Environment dated Feb 23, 98
Photo of baghouse dust



Richard Cargill
5976 Hygiene Road
Longmont, CO 80503 (303) 772-4267

cc: St. Vrain Valley Community Watchdogs

Governor Roy Romer

Senator Ben Nighthorse Campbell

Representative David Skaggs

Senator Terry Phillips

Senator Sally Hopper

Representative Bill Swenson

Representative Todd Saliman

Environmental Protection Agency

Mayor of Longmont - Ms. Leona Stoecker

Mayor of Lyons - Mr. Nick Angelo

Robert Brady, Jr., Colorado Air Quality Control Commission

Robert Jorgenson, Colorado Department of Public Health & Environment

Dave Ouimette, Boulder County Health Department

✓ Director, Division of Minerals and Geology

Jeff Zayach, Health Department, Environmental Health Program

Gabi Hoefler, Health Department, Environmental Health Program

Ron Stewart, Land Use Commission

Paul Danish, Land Use Commission

Jana Mendez, Land Use Commission

Richard Fleming, The Boulder Weekly

Chris Roberts, Boulder Daily Camera

Daily Times - Call